

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Guild Preliminary-Injunction Reply

Filed January 16, 2026

The City's opposition confirms the central constitutional defect. Norvale needs presentation times, formats, locations, audience estimates, equipment information, loading plans, and access routes. It does not need payment status, an author-specific charge, or a final name-and-topic roster forty-five days in advance to obtain those facts. Both City declarants acknowledge that compensation does not predict attendance and that an unchanged replacement does not necessarily affect police, layout, or staffing needs.

The Guild does not accuse Norvale of viewpoint hostility. A rule may be content neutral and still fail narrow tailoring. *Billups v. City of Charleston*, 961 F.3d 673 (4th Cir. 2020), evaluates the demonstrated connection between a burden on paid speech and the government's asserted interest. Norvale's evidence establishes significant interests, but not the required fit between those interests and the challenged speaker trigger, early disclosure, or escalating fee.

The City also understates present harm. The February 14 program must be assembled now. A late author offered only a contingent invitation may decline before staff ever issue a formal denial. The December 31 filing point has passed, the fee schedule applies, and Section 7 guarantees neither acceptance nor a prompt decision. *Winter* does not require the Guild to lose an appearance before protecting it from a process already governing its choices. The reply asks for limited relief that leaves direct regulation of every documented physical risk in place.

Content Neutrality Does Not Supply Narrow Tailoring

The City spends substantial effort proving what the Guild has not disputed: officials may not read a script, judge an opinion, or price predicted hostility. Those safeguards matter, and the pilot decisions appear neutral. But the time, place, and manner test contains independent elements. A regulation must advance its significant interest without burdening substantially more protected activity than needed. A benign purpose and uniform enforcement do not make every chosen proxy sufficiently tailored.

The City's structural distinction is only partly responsive. A scheduled reading differs operationally from conversation at a table because it has a place and time and may attract a temporary group. Compensation does not create that difference. Norvale can define and request information about an “organized presentation” without asking whether the speaker is paid. That approach would reach the crowd feature directly while avoiding a charge that applies only when expressive labor is compensated.

Nor do identity and subject add the logistical content the City claims to need. A schedule can use numbered slots. A format line can identify a reading, panel, demonstration, sound system, chairs, or questions. Expected audience and duration can state likely movement. Voss says names assist accurate communication, not risk prediction. Pike says name and subject do not determine police deployment. Those candid concessions are consistent with good-faith administration and inconsistent with the necessity of the burdens challenged here.

Ward v. Rock Against Racism, 491 U.S. 781 (1989), does not require the absolute least restrictive alternative. It also does not free the government from showing that the means chosen materially advance its interest without unnecessary burden. The alternatives here are not speculative inventions; they are the precise operational fields already used in the City's own review.

The Record Does Not Connect Charges or Delay to Actual Need

The opposition describes blended cost estimates but supplies no speaker-level accounting. Voss cannot say that each extra author produces \$45 of added work. Pike confirms that another compensated name does not automatically require an officer and that his department did not calculate the fee. The charge increases even when an additional modest reading fits within existing hours, seating, and attendance. Uniform arithmetic eliminates viewpoint variance, but it does not establish that speech-number pricing is constitutionally fitted to administrative expense.

The \$240 base assessment presents a related application problem. It attaches because the recurring event includes at least one paid speaker. The Guild does not challenge a neutral park-processing fee charged to comparable gatherings. It challenges making compensation the event-level switch. If ordinary reservation review would occur for the same tents, sellers, loading, and attendance, the City has not identified what speaker-triggered common work justifies the entire additional base amount.

Late-change discretion provides no safe channel. The City says a simple substitution may be resolved quickly, but the ordinance fixes no response time and no rule requiring approval when time, place, format, audience, equipment, and layout remain unchanged. A written reason delivered after an author accepts another engagement does not repair the loss. The City's assurance of careful administration is relevant to motive, not a substitute for a binding standard.

The alternatives chart filed with this reply demonstrates workable choices: ask about every scheduled audience presentation without regard to payment; use attendance or site thresholds; collect direct operational facts; approve a same-slot substitution through a short update; and impose costs only for documented services. The Court need not enact any alternative. Their feasibility shows that Norvale can protect its real interests with substantially less pressure on paid literary speech.

All Four Winter Factors Are Satisfied

Likely success follows from protected paid speech, the public setting, and the missing evidentiary fit. The City is correct that its interests are substantial. That concession makes the comparison clearer: congestion and access should be answered with congestion and access measures. A peaceful record does not bar planning, but two minor medical calls and routinely corrected loading conditions do not justify treating every honorarium as added municipal burden.

Irreparable harm occurs during formation of the program. Invitations, travel, author availability, sponsorship, vendor participation, and advertising cannot remain open indefinitely. The forty-five-day rule and uncertain amendment path already require the Guild to choose between omitting a speaker, making a contingent offer, or risking a late refusal. Fees likewise shift limited funds away from honoraria and participation. After-the-fact repayment cannot recreate a reading or return a missed audience.

The equities favor a narrow injunction because the Guild accepts the City's practical measures. It will identify the presentation area, times as known, format, equipment, expected audience, loading window, service route, and responsible contact. It will report a material change and comply with written conditions addressing documented traffic, crowd, or resource facts. The City loses no lawful ability to protect the site by being required to use those direct variables.

The public interest is not one-sided. Residents need safe routes, functioning transit, and dependable emergency access; they also benefit from free literary events open to people who may never enter a member bookstore. An interim order can preserve both. The City's request to continue the challenged proxy during litigation would force the expressive loss first and test constitutionality later.

Appropriate and Specific Interim Relief

The Guild's proposed scope is concrete. For its six announced 2026 Cedar Commons fairs, the City should not require the name or literary topic of a compensated speaker forty-five days in advance, impose the \$45 speaker increment, apply the \$240 paid-speaker base assessment solely because honoraria are offered, or reject an otherwise unchanged late addition merely because it was not named at the original cutoff. The restraint should extend only while this case is pending and only to the Guild's identified series.

The order should state equally clearly what remains available. Norvale may administer neutral reservation priority, lawful capacity, accessibility, insurance, sanitation, tent placement, emergency corridors, loading, traffic, transit access, competing use, and site rules. It may obtain the time, duration, format, location, equipment, and reasonably expected audience for a scheduled presentation. It may condition a material change when a written decision identifies the concrete risk and explains the operational response.

The City suggests that current facts might support only a prompt-review requirement. Promptness would help but would leave the payment trigger and cumulative assessment untouched, and it would still require speaker identity and topic before staff ask the direct logistical questions. The likely defect is the mismatch across the mechanism, not merely the speed of one amendment decision.

The Guild requests nominal security or an express determination that no security is needed because the relief preserves the City's ordinary authority and the City identifies no compensable loss. That request is not a demand that Rule 65(c) be ignored. It asks the Court to address the issue on this record. For these reasons and those in the opening memorandum, the Court should grant preliminary relief. Respectfully submitted January 16, 2026, by counsel for Piedmont Booksellers Guild.